

Smt. Anitha.G vs Sri. Raghu. R on 16 February, 2023

KABC040019682014

Presented on : 23-09-2014
Registered on : 23-09-2014
Decided on : 16-02-2023
Duration : 8 years, 4 months, 23 days

IN THE COURT OF THE METROPOLITAN MAGISTRATE,
TRAFFIC COURT - II, AT BENGALURU

DATED THIS 16 TH DAY OF FEBRUARY 2023.

PRESENT : Smt.HAMSA V., B.Sc(Seri)., LL.B.,
C/c. M.M.T.C-II, BENGALURU.

Crl.Misc.No.147/2014

PETITIONER Smt. Anitha.G.
W/o Raghu.R,
D/o Govindaraju,
Aged about 30 years,
R/at : No.1613,
4 th 'A' Cross, VI Main,
RPC Layout, Vijayanagar,
Bengaluru- 560 040.

(By Sri. K.T.G., Adv.,)

V/s

RESPONDENT Sri. Raghu. R,
S/o T.Ramakrishna,
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Aged about 34 years,
R/at : No.17, 1 st Main,
RMV II Stage,
Behind Devaiah Garden,
Dollor's Colony,
Nagashettyhalli,
Bengaluru- 560 094.

(By Sri. H.S.C., Adv.,)

J U D G M E N T

This petition is filed by the petitioner under Sec.12 of the Protection of Women from Domestic Violence Act, 2005, seeking relief under Sec.18, 19, 20 and 22 of the said Act.

2. The brief facts of the petitioner's case are as under;

The marriage between the petitioner and respondent was solemnized on 28.02.2013 at Shivaprabha Kalyana Mantapa, Bengaluru by spending more than Rs.8 lakhs and the marriage was performed as per Hindu rites and customs and the said marriage was an arranged marriage. She further contends that their engagement ceremony was held on 18.11.2012 at Hotel Shivals, 6th block, Rajajinagar, Bengaluru by spending more than Rs.2 lakhs. It is

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further contended by the petitioner that respondent's mother demanded a dowry of Rs.2,00,000/- in cash and gold jewellery weighing 250 grams to the bride and 150 grams to the groom. Later, after negotiation petitioner parents agreed to give Rs.1,00,000/- cash and 50 grams of gold to groom and 200 grams of gold to the bride. The details of gold ornaments given to the petitioner and the respondent at the time of marriage by the petitioner's father is as under;

ORNAMENTS GIVEN TO THE PETITIONER
AND RESPONDENT

Sl. No.	PETITIONER	RESPONDENT
1.	One 75 Grams of gold necklace	One 20 gms of gold bracelet
2.	Two sets of 40 gms of gold earrings	One 30 gms of gold chain
3.	Two set of 20 gms of gold finger rings	One 500 gms silver plate
4.	One 20 gms of gold chain with 5 gms of gold pendent mug/jug	One 250 gms of silver
5.	One set of 5 gms of gold drops	

6. One set of 35 gms of gold bangles
7. One set of 20 gms of silver leg chain
8. One set of 10 gms of silver leg finger rings

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It is averred that hardly for 10 days the petitioner had good marital life with the respondent. Immediately respondent started to show his real colours and attitude with taunting words, abusing petitioner with vulgar words very often. Petitioner further contended that respondent's family were non vegetarian and Petitioner was pure vegetarian and as she could not accustom to the new atmosphere, environment and food habits she lost 12 kgs. Later the Respondent demanded to bring additional dowry of Rs.2,00,000/- and gold ornaments. Prior to marriage the respondent and his family had falsely represented that, the respondent is a B.Com graduate and a Class-I Contractor and also owns an apartment with real estate business and also money lending business with total earnings more than 15 lakhs per month.

It is further contended by the petitioner that, she was taking treatment for epilepsy from Dr.Venkataram and was under medication and the same was disclosed to the respondent and his parents before marriage. In spite of disclosing the same respondent along with his mother used to taunt on the petitioner. After marriage the petitioner and the respondent on 18.03.2013 went to Mercara, Coorg for their

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honeymoon and the marriage was consummated. As respondent was supposed to attend his friend's marriage at Mysore he had intimated the petitioner that the trip will be for 3 days only, but after 1 day stay at Coorg and after visiting Talakaveri temple on 19.03.2013 they returned to Mysore. While returning from Mysore petitioner developed viral fever due to climate change and the respondent didn't take care of the petitioner instead he started to abuse with filthy language. On 24.03.2013 when petitioner along with the respondent and his family visited relative house at Vijayanagar the petitioner fainted due to viral fever at

the relative's house, respondent and his mother without showing courtesy towards the petitioner bombarded and manhandled her.

On 07.05.2013 when petitioner was suffering from headache and vomiting due to climate change at that time respondent forcibly admitted to Gurushree Nursing home at Chandra Layout with the aid of Dr.Rohith who was friend of respondent. Even on 21.05.2013 and 19.06.2013 when petitioner complained about headache and vomiting she was forcibly admitted in the same hospital in order to torture the petitioner. After discharging from the said hospital on 19.06.2013 the respondent dropped the

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petitioner at her parental home and didn't make any effort to take her back to her matrimonial house.

The petitioner submits that, respondent and his mother used to tease petitioner's father and her family members stating they don't know to speak properly and they couldn't pay dowry as demanded and also couldn't provide gold silver and house hold things. Respondent and his mother used to dictate other members of the respondent family do not have any cordial relationship with the petitioner and thus she was subjected to mental and physical torture at the hands of both respondent and his mother.

It is further contended that the respondent by suppressing the material facts and in order to insult the petitioner and also to injure her, has filed a petition before Hon'ble court seeking the relief for dissolution of marriage in M.C No.4800/2013 under section 5(i)(ii)(A), (B) and (C) and section 13(1)(I-A) of the Hindu Marriage Act,1955 by making false grounds and in turn she had also filed a petition for restitution of conjugal rights. The petitioner is in hope that the respondent and his mother after understanding the real facts may set right their lapses and the petitioner is even ready and willing to fulfill her duties as a dutiful wife. It is also

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contended that the respondent has caused domestic violence by demanding for dowry and also ill-treated

her and has subjected her to severe acts of domestic violence by way of innumerable physical and mental torture. Hence, this petition.

3. After the registration of petition, notice has been issued to the respondent. After the service of said notice, respondent appeared before this court through his counsel and filed his statement of objections and in the statement of objections the respondent has admitted the relationship between him and petitioner and denied all other allegations made by the petitioner and contends that the petitioner's father has not incurred rupees eight lakhs towards marriage and nor they have demanded for dowry nor have harassed the petitioner nor they have represented that respondent is a Class-I contractor and that he earns Rs.15,00,000/- per month. Per contra it is the contention of the respondent that the petitioner and her parents have concealed the fact that the petitioner was suffering from epilepsy and she was under treatment for past couple of years even before marriage. However, later during their honeymoon trip the respondent noticed that the petitioner was coughing constantly upon enquiry he was informed

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that it was common cold but later when the respondent noticed the blood vomit she informed that she was suffering from viral fever because of which the respondent had to cut short the trip. The respondent contended that once when petitioner and respondent had been to relatives' house for lunch the petitioner suddenly collapsed and started convulsing and frothing at the mouth and when the respondent tried to lift the petitioner, petitioner father stopped the respondent and the petitioner stopped convulsing. After due enquiry the petitioner disclosed that in her childhood she had head injury and since then she was facing the said problem and has been on medication from past 10 to 12 years. The respondent then took the petitioner to the Doctor who treated the petitioner before marriage at BGS hospital at Kengeri. The Doctor disclosed that the petitioner was suffering from epilepsy and the doctor informed the respondent and his parents that, the petitioner is to be on medication continuously and she might not be able to bear children. Then the respondent realised that he and his family were cheated upon by the petitioner and her family and they had concealed the incurable mental illness and played fraud on them. Thereafter the

petitioner used to fall sick very often and had epileptical attacks almost twice a day. The respondent

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further stated that the petitioner was yet again admitted to a nursing home on 19.06.2013 and from there she was in and out of hospitals a couple of times and from thereon the petitioner went to her parents house and continued to reside there till date.

The respondent further contended that he has filed a petition for divorce before the Family Court at Bangalore in MC No 4800/2013 and the petitioner has filed petition under section 9 of Hindu Marriage Act 1955 seeking restitution of Conjugal Rights before the Family Court Bengaluru in M.C.No.3987/2014. Respondent submits that both the petitions have been clubbed together and thereafter the petitioner has filed objections to the main petition in MC No.4800/2013 and also has filed application under section 24 of Hindu Marriage Act, 1955 seeking maintenance of Rs.50,000/- per month and litigation expenses of Rs.25,000/-. The Hon'ble Court has allowed the said application by granting the maintenance of Rs.20,000/- per month to the petitioner. Petitioner has suppressed the said facts and has approached the Court with unclean hands. Further the respondent has filed WP 42841/20154(GM-FC) before the Hon'ble High Court of Karnataka, Bengaluru questioning the grant of maintenance wherein an interim order has

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been passed directing the respondent to pay monthly maintenance of Rs.10,000/- to the petitioner. In point of the above facts it is the respondent who has been suffering and has undergone untold misery and agony as his personal life and dream of leading a happy married life is shattered. Hence, he prays for dismissal of the petition.

4. In order to prove her case the petitioner has examined herself as PW.1 and got marked 10 documents as Ex.P.1 to 10. Inturn the respondent examined himself as RW.1 and got marked 3 documents as Ex.R.1 to 3.

5. The following points that arises for my consideration are as under;

1. Whether the Petitioner proves that she has been subjected to Domestic Violence and neglected by the respondent?
2. Whether the petitioner is entitled for the reliefs as sought in the petition?
3. What order?

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6. On perusal of materials before this court, my findings on the above points are as follows;

- Point No.1 : Partly in the affirmative;
- Point No.2 : Partly in the affirmative;
- Point No.3 : As per final order for the following;

R E A S O N S

7. POINT No.1 : The petitioner sought maintenance of Rs.50,000/- per month, compensation of Rs.5,00,00,000/- and to pay a sum of Rs.15,00,000/- towards marriage expenses and to return the gold ornaments and sarees which are in possession of the respondent. In order to get relief u/sec.12 of Protection of Women From Domestic Violence Act-2005 the petitioner has to prove domestic relationship and they were subjected to domestic violence by respondent.

8. In order to prove the case, the petitioner examined herself as PW-1 and got marked documents Ex.P.1 to 10. In the affidavit filed in lieu of examination-in-chief, the Petitioner reiterated petition averments. Per contra, the respondent in order to prove his defence examined himself as RW-1 and in

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his examination-in-chief affidavit reiterated objection averments. She has placed on record the marriage invitation card at Ex.P.1 and marriage photos at Ex.P.2 . These documents reveals that she is the wife of the respondent. These documents remained

unchallenged or uncontroverted by the respondent. Therefore, there is no reason to disbelieve the version of the petitioner that she is the legally wedded wife of the respondent. Second ingredient that the petitioner has to prove that she was subjected to domestic violence.

9. According to the petitioner, the respondent ill-treated her by demanding additional Dowry. But the petitioner has not made any efforts to lead supportive or cogent evidence regarding issuance of dowry to the respondent.

10. It is alleged by petitioner that, she was subjected to domestic violence by respondent and his family members and She was physically and mentally harassed by the Respondent. The family members of respondent were not made as party in this petition and petitioner has not sought any relief from the family members of respondent. It is also contended that petitioner was pure vegetarian and she couldn't accustom to the new atmosphere where food habits

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of petitioner and respondent was different and due to which she lost 12 kgs. It is further contended that respondent's mother used to make taunting comments on the petitioner and her family members and used to pass comments on them whenever the petitioner moved around in their house. Respondent's mother used to restrict the petitioner from intervening in their talks and dictated other members of the respondent's family not to have cordial relationship with the petitioner and created solitary loneliness to the petitioner. Respondent subjected her to mental torture and abused the petitioner with filthy language below the dignity of women and even manhandled the petitioner.

11. It is to be observed that the respondent has filed M.C 4800/2013 for annulment of marriage and the petitioner has filed M.C 3987/2014 for restitution of conjugal rights. In support of the same he has produced Ex.R.1 to Ex.R.3. The respondent has agreed to adopt the cross examination in the above said petitions and he has no objections to adopt the same as mentioned in Ex.P.9. It is contended by the petitioner that when petitioner was suffering from

fever and she was forcibly admitted to Gunashree

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Nursing Home at Chandra Layout with an intention to put an end to the relationship with the petitioner. Though the petitioner has not summoned any documents to prove her contention, the respondent himself has admitted in the cross examination that there are many specialty hospitals in the area where his house is situated. This attitude of the respondent creates doubt to the court that he has intentionally admitted her to Gunashree nursing home. Though the respondent has contended that the doctor treating the petitioner informed that recovery of the petitioner is bleak and she is incapable to bear children they have not produced any documents to prove the same and the respondent himself has admitted in the cross examination that nowhere it is stated that the said disease is an incurable disease and the petitioner cannot conceive. Here the specific contention of the respondent is that, prior to marriage the petitioner was suffering from epilepsy disease and without disclosing the same the petitioner and her family got married to the respondent with an intention to cheat the respondent. If at all his major contention was only the disease of the petitioner he could have approached the legal remedies which are available to him. Instead, he being the husband of the petitioner has neglected her and has not taken care of the petitioner though it

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is the bounden duty of him. According to Sec.3(d)(iii) and 4 of PWDV Act the emotional and economic abuse are also a domestic violence and here the petitioner has proved that she has been subjected to emotional abuse by the act of negligence by the respondent. Accordingly, this court answered Point No.1 partly in the affirmative.

12. POINT No.2 :The petitioner has claimed protection order under Sec.18, residential order under Sec.19, monetary relief under Sec.20 and compensation order under Sec.22 of PWDV Act.

13. The petitioner has sought for protection order. As per the address mentioned in the cause title both the parties are residing separately. It is not the

case of the petitioner that the respondent inflicting the Domestic violence on the petitioner at her residence or at her working place. When such being the case this court deems it inappropriate to grant any protection order.

14. The petitioner has sought for residence order under Sec.19 of PWDV Act. On perusal of exhibit 'P' series it is noticed that the petitioner has not produced any documents to establish that the

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shared household where both of them resided together belongs to the respondent. Hence, as per the judgment of Hon'ble Supreme Court of India reported in 2007(3) SCC 169 between S.R.Batra and another Vs. Tarun Batra where in it is held that:

"section 2(s) and 17-'Shared house hold'- Wife's right to reside therein- House which exclusively belonged to mother-in-law of the woman where she only lived with her husband for some time on the past after the marriage-Held- not a 'Shared house hold' within the meaning of section 2(s) and respondent is entitled to claim right to live therein under section 17-In order to claim such a right the property should belong to her husband or it should have been taken on rent by her husband or it should have been joint family property in which her husband was a member.

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The Hon'ble Supreme Court of India has held that unless the petitioner establishes right of respondent in the shared household she cannot seek for residence order. Further the petitioner has not produced any documents to establish the fact that the respondent is capable of arranging a separate accommodation to the petitioner so as to issue such direction. In the absence of the required evidence such relief cannot be granted. Hence the relief for

residential order is liable to be declined.

15. The petitioner has requested to return the gold ornaments and the sarees which are in possession of the respondent but the Petitioner has not produced any single documents in respect of ornaments which are alleged to have been given by the petitioner parents at the time of marriage and PW.1 has not made any efforts to lead supportive or cogent evidence regarding the possession of the same.

16. The petitioner has sought for monetary relief of Rs.5,00,00,000/- as compensation and Rs.50,000/- p.m. to the petitioner towards her monthly maintenance. Further it is apparent that the aggrieved is depending upon her parents and she is not financially capable to lead her life and it is also stated by the petitioner that the respondent is

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a contractor engaged in BBMP and doing real estate and money lending business and he is earning more than 15 lakhs per month. But, she has not produced any documents to show his financial capacity. However, in assets and liabilities the respondent has agreed he is earning Rs.6,00,000/- per annum and he has not produced any materials to prove his income. Based on the liabilities mentioned in the affidavit of assets and liabilities by the respondent an inference can be drawn that the petitioner is earning more than Rs.1,00,000/- per month. Hence, the petitioner is entitled for maintenance of Rs.10,000/- p.m. Further, by the act of respondent it is apparent that the petitioner has suffered mental agony and which cannot be described in words. Hence, the petitioner is entitled for compensation of Rs.2,00,000/-. As per the judgment of Hon'ble Supreme Court of India in Savitaben Somabhai Bhatiya V/s State of Gujarat reported in AIR 2005 SC 1809. It is held that it is fundamental and natural duty of the husband to maintain his wife. More over, the respondent has agreed that he left the petitioner in her father's house and has not taken care of her this shows the negligence of the respondent towards the petitioner. Though it is the bounden duty of the respondent to maintain the petitioner, he has failed to discharge his

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duties as a husband. When such being the case this court finds it just and proper to award maintenance of Rs.10,000/-p.m. and compensation of Rs.2,00,000/- to the petitioner. Accordingly, this court answered Point No.2 partly in the affirmative.

17. POINT No.3 :- In view of the materials placed before this court, pleadings, deposition and documentary evidence this court proceeds to pass the following:

ORDER

The petition filed by the petitioner under Sec.12 of The Protection of Women from Domestic Violence Act, 2005 is allowed in part.

The respondent is directed to pay an amount of Rs.10,000/-p.m. (Rupees Ten thousand only) to the petitioner towards maintenance from the date of petition till her life time or till she gets re-married whichever is earlier.

The respondent is further directed to pay an amount of

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Rs.2,00,000/- (Rupees Two lakhs only) as compensation to the petitioner.

Office is directed to furnish a copy of

this order free of cost to the petitioner. (Dictated to the Stenographer, transcript computerized by her, revised corrected and then pronounced by me in the open Court on this the 16 th day of February 2023).

(HAMSA. V) C/C. MMTC-II, BENGALURU.

ANNEXURE WITNESSES EXAMINED FOR THE PETITIONER:

PW.1 Anitha.G DOCUMENTS EXHIBITED FOR THE PETITIONER:

Ex.P.1 Marriage invitation card Ex.P.2 Marriage photo Ex.P.3 Certified copy of order sheets in MC No.4800/2013 Ex.P.4 Certified copy of petition in MC No.4800/2013 Ex.P.5 Certified copy of objection in MC No.4800/2013 Ex.P.6 Certified copy of order

sheets in MC No.3987/2014 Ex.P.7 Certified copy of petition in MC No.3987/2014 Ex.P.8 Certified copy of objections in MC No.3987/2014 Ex.P.9 Affidavit in MC No.4800/2013 Ex.P.10 Certified copy of orders on IA No.6 in MC No.4800/2013 Crl.Misc.147/2014 WITNESSES EXAMINED FOR THE RESPONDENT :

RW.1 Raghu. R DOCUMENTS EXHIBITED FOR THE RESPONDENT :

Ex.R.1 Certified copy of petition in MC No.4800/2013 Ex.R.2 Certified copy of petition in MC No.3987/2014 Ex.R.3 Certified copy of affidavit in MC No.3987/2014 (HAMSA. V) C/C. MMTC-II, BENGALURU.